

defendant’s due process rights, plaintiff must meet a set of detailed procedural and substantive requirements]; see Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2023) ¶ 9:912 [section 484.040 of the Code of Civil Procedure “requires service of the application *and any supporting papers* at least 16 court days before the hearing....”].)

On July 6, 2023, Plaintiff filed eight documents in support of its two Applications for right to attach orders: two documents entitled (1) & (2) Right to Attach Order and Order for Issuance of Writ of Attachment After Hearing” [ROA # 53, 54], (3) & (4) Notice of Application for Right to Attach Order and Order for Issuance of Writ of Attachment [ROA # 51, 52], and (5) & (6) Application for Right to Attach Order, Order for Issuance of Writ of Attachment After Hearing [ROA # 49, 50]. It also filed (7) a Declaration of Joel Spencer in Support of Plaintiff’s Applications for Right to Attach Order and Orders for Issuance of Writs of Attachment [ROA # 45], and (8) a Memorandum of Points and Authorities [ROA # 43].

However, only one submission, namely, the Memorandum of Points and Authorities in Support of Plaintiff BMO Harris Bank N.A.’s Applications for Right to Attach Orders and Issuance of Writs of Attachment, was accompanied by a proof of service. [ROA # 43] The proof of service attached to the Memorandum of Points and Authorities specifies that only that document was being served on Defendants.

On September 20, 2023, Plaintiff filed a document entitled “Declaration of Service of Applications for Right to Attach Order and Orders for Issuance of Writs of Attachment.” [ROA # 63] In that document, Plaintiff states it electronically served all eight documents on September 20, 2023.

This is untimely under sections 484.040 and 1005, subdivision (b) of the Code of Civil Procedure, which required all moving and supporting papers be filed and served at least 16 court days before the hearing.

Since the Court must strictly construe Plaintiff’s Applications, the Court denies them for failure to timely serve all papers in support of its two Applications.

Plaintiff is ordered to give notice.

8	Vanasse v. Silverado Senior Living management, Inc.	TENTATIVE RULING: For the reasons set forth below, Plaintiffs Alma Boettcher Vanasse, by and through her Successor-in-Interest Laura Crosson, Laura Crosson, and Thomas Vanasse’s Motion to Augment Plaintiffs’ Expert Designation is DENIED. A. Statement of Law “After the setting of the initial trial date for the action, any party may obtain discovery by demanding that all parties simultaneously exchange information concerning each other’s expert trial witnesses to the following extent: (a) Any party may demand a mutual and simultaneous exchange by all parties of a list containing the name and address of any natural person, including one who is a party, whose oral or deposition testimony in the form of an expert opinion any party expects to offer in evidence at the trial.” (Code Civ. Proc., § 2034.210, subd. (a)¹; see §§ 2034.230, 2034.240, 2034.260 [procedural requirements].) “Within 20 days after the exchange ... any party who engaged in the exchange may submit a supplemental expert witness list containing the name and address of any experts who will express an opinion on a subject to be covered by an expert designated by an adverse party to the exchange, if the party supplementing an expert witness list has not previously retained an expert to testify on that subject.” (§ 2034.280, subd. (a).) “Except as provided in Section 2034.310 and in Articles 4 (commencing with Section 2034.610) and 5 (commencing with Section 2034.710), on objection of any party who has made a complete and timely compliance with Section 2034.260, the trial court shall exclude from evidence the expert opinion of any witness that is offered by any party who has unreasonably failed to do any of the following: (a) List that witness as an expert under Section 2034.260. (b) Submit an expert witness declaration....” (§ 2034.300, subs. (a) & (b).) “On motion of any party who has engaged in a timely exchange of expert witness information, the court may grant leave to do either or both of the following: (1) Augment that party’s expert witness list and declaration by adding the name and address of any expert witness whom that party has subsequently retained.” (§ 2034.610, subd. (a)(1); see Weil & Brown, Cal. Practice Guide: Civil
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¹ All further statutory references are to the Code of Civil Procedure, unless otherwise specified.